

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR C61
HON. JENNIFER M. MCCARTNEY

Date: 7/10/2026

Courtroom Rules and Notices

The Court will continue to upload tentative rulings as they are completed. Please be sure to keep checking until 8:30 AM on the day of your hearing.

Written responses, oppositions, or filings that are filed later than 12:15 PM the day before the hearing on the motion will go on second call by the Court for the Court to have an opportunity to review any last-minute filings. If a party files a written response, opposition, or any filing after 12:15 PM on the day before the hearing, the party must ensure they are available for the court's afternoon calendar the day of the hearing.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5261 – both counsel need to state they are submitting on the tentative. Please do not call the Department unless all parties submit to the tentative ruling. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling, and the prevailing party shall give notice of the ruling and prepare an order for the Court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

#	Case Name	Tentative
1	30-2019-01115119 Anaheim Villas LLC vs. Valadez	The Court has read and considered the Defendant's Motion to Remove Eviction (ROA 23) which the Court deems a Motion to Seal and the Proofs of Service by Mail (ROA 31 & 32) serving Mr. Silverstein with notice of the motion. The Court takes Judicial Notice of the Judgment Unlawful Detainer (ROA 15). Pursuant to California Rules of Court, rule 2.550 and 2.551, the Court finds: (1) There exists an overriding interest that overcomes the right of public access to the record; (2) The overriding interest supports sealing the record; (3) A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; (4) The proposed sealing is narrowly tailored; and (5) No less restrictive means exist to achieve the overriding interest. This was a judgment for possession only of the property; there is no monetary judgment on record; it has been more than six years since the judgment was entered, and it is detrimentally affecting the Defendant from obtaining housing.

		The Court orders that the record of Beverly Ray Sandoval regarding this eviction be sealed and removed from the public records search. The Court Clerk is directed to seal the record and remove the information from the public search methods.
2	30-2023-01333357 Oktogon Santa Ana, LLC vs. Price	The Court has read and considered the Defendants' Motion to Set Aside Default Judgment (ROA 50). The Court takes Judicial Notice of the Declaration in Support of Default Judgment by Court CCP 585(d) (ROA 36), Judgment -Unlawful Detainer (ROA 38), Proof of Service of Summons (ROA 15, 17, 19, 21, & 23) As a threshold matter, California Code of Civil Procedure § 473(b) gives the Court discretion to set aside a default judgment with certain requirements, including that the request "shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken." The Unlawful Detainer Judgment in this matter was entered on December 21, 2023; the Defendants did not file their motion to set aside default until June 16, 2026, which is two years, 5 months, and 27 days after the judgment was entered. Charles Price Jr. asserts that he was not a party to the lease agreement but merely an occupant. ROA 36 has attached to it a copy of the Lease Contract for the premises in dispute in the unlawful detainer proceeding. The Lease Contract dated February 26, 2022 lists the "parties" (all people signing the Lease Contract) as Katrina Price, Charles Price Jr., Charles Price Sr., and Shannon Price. No one is listed under "Occupants" on the Lease Contract. Charles Price Jr., along with his mother, father, and sister, signed the lease agreement electronically. California Evidence Code Section 647 creates a rebuttable presumption that a proof of service signed by a registered process server is true. It shifts the burden of proving lack of service to the defendant, rather than requiring the plaintiff to prove proper service. ROA 15 shows that Katrina Price was personally served by registered process server Justin Martin (Orange County #2655) on 7/2/2023 at 2:21 PM. ROA 17, 19, and 21 shows that Charles Sr., Charles Jr., and Shannon were served via substitute service on Katrina Price on the same date and mailed a copy of the summons and complaint. Defendants state, without any evidence to support their claim or to show their move-out date, that they were unaware of the court proceedings and moved out of the premises. The Court finds that the Defendants failed to rebut the presumption under Evidence Code section 647. The Court DENIES the Motion to Set Aside Default and Default Judgment. Plaintiff is ordered to provide notice of the Court's ruling.
6	30-2026-01561001 Yan vs. Wang	Matter will be continued until Wednesday, July 22, 2026 at 8:30 AM for Motion for Summary Judgment on the Court's own motion. The Court Clerk is to provide notice to the parties.